# Azuga Inc & Anr vs Azuga Telematics Llc & Ors on 26 September, 2025

## Author: Manmeet Pritam Singh Arora

## Bench: Manmeet Pritam Singh Arora

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*         IN THE HIGH COURT OF DELHI AT NEW DELHI
+         CS(COMM) 1044/2025 & I.A. 24393-24399/2025
          AZUGA INC & ANR.
                                        Through:          Mr
                                                          Ms
                                                          Dh
                                        versus

          AZUGA TELEMATICS LLC & ORS.

                                        Through:          Mr

CORAM:
HON'BLE MS. JUSTICE MANMEET PRITAM SINGH ARORA
                                        ORDER
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% 26.09.2025 I.A. 24395/2025 (seeking leave to file additional documents)

1. This is an application filed by the Plaintiffs seeking leave to file additional documents under Order XI Rule 1(4) of the Code of Civil Procedure, 1908 ['CPC'] [as amended by the Commercial Courts Act, 2015] read with Section 151 CPC, within thirty (30) days.

2. The Plaintiffs, if they wish to file additional documents, will file the same within 30 days from today, and it shall do so strictly as per the provisions of the Commercial Courts Act and the Delhi High Court (Original Side) Rules, 2018 ['DHC Rules'].

3. For the reasons stated in the application, the same is allowed.

4. Accordingly, the application is disposed of.

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I.A. 24396/2025 (seeking exemption from filing clearer copies)

5. This application is filed by the Plaintiffs under Section 151 CPC seeking exemption from filing clearer copies of dim documents.

6. The clearer copies of documents mentioned at prayer clause 4(a) of this application be filed within two (2) weeks.

7. Accordingly, the application stands disposed of. I.A. 24397/2025 (seeking extension of time for filing court fees)

8. This is an application filed by Plaintiffs seeking extension of time for filing court fees.

9. Learned counsel for the Plaintiffs states that the court fees have been deposited today and the court fees certificate will be deposited with the registry within one (1) week.

10. Timeline for deposit of Court fees is extended by one week. This application is disposed of.

I.A. 24398/2025 (seeking service to Defendant No. 3 via WhatsApp)

11. This is an application filed by the Plaintiffs under Section 151 CPC seeking permission to serve Defendant No. 3 via WhatsApp messenger.

12. For the reasons stated in the application, the application is allowed. I.A. 24399/2025 (seeking time for filing the required certificate)

13. This is an application filed by the Plaintiffs under Section 151 CPC seeking time for filing the required certificate under Section 63(4)(c) of the Bharatiya Sakshya Adhiniyam, 2023 ['BSA'].

14. The certificate under Section 63(4)(c) of BSA is directed to be filed within four (4) weeks.

15. Accordingly, the application is disposed of.

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I.A. 24394/2025 (seeking discovery of the Defendants' documents)

16. This is an application filed by the Plaintiffs under Order XI Rule 1, 3 and 5 CPC seeking discovery, production, and inspection of the Defendants' documents.

17. Issue notice to Defendant nos. 1 and 3 through all modes.

18. Reply be filed within two (2) weeks. Rejoinder thereto, if any, be filed within two (2) weeks thereafter.

CS(COMM) 1044/2025

19. The present suit has been filed by the Plaintiffs seeking permanent injunction restraining trademark infringement, passing off, copyright infringement and other ancillary reliefs.

20. Let the plaint be registered as a suit.

21. Issue summons.

22. At the outset, Mr. Aman Kumar, Defendant no. 2 has joined the proceedings through video conferencing link.

22.1 He states that he has received a copy of the paper book and waives the right of formal issuance of summons.

22.2 He states that he has no connection with Defendant no. 1. He states that he was an ex-employee of Plaintiff no. 2. He submits that upon perusal of the paper book, he finds that at page 67 of the documents, his name appears as the admin and registrant of the domain name AZUGATELEMATICSLLC.COM.

22.3 He states that however, neither the phone number nor the address mentioned on this page pertains to him.

22.4 He states that he is currently a resident of Bangalore and working with FICO. He states that he will cooperate with the Plaintiff and give an This is a digitally signed order.

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23. Mr. Dhruv Anand, Advocate for the Plaintiffs and Mr. Aman Kumar/defendant no. 2 are directed to have a meeting through video conferencing link on 03.10.2025 at 11:30 A.M. The video conferencing link will be circulated by the Plaintiffs to Mr. Aman Kumar.

24. Summons be issued to Defendant nos. 1 and 3 by all permissible modes on filing of process fee. Affidavit of service be filed within two (2) weeks.

25. The summons shall indicate that the written statement(s) must be filed within thirty (30) days from the date of receipt of the summons. The Defendants shall also file affidavits of admission/denial of the documents filed by the Plaintiffs, failing which the written statement(s) shall not be taken on record.

26. The Plaintiffs are at liberty to file replication(s) thereto within thirty (30) days after filing of the written statement. The replication(s) shall be accompanied by affidavit(s) of admission/denial in respect of the documents filed by Defendant, failing which the replication(s) shall not be taken on record.

27. It is made clear that any unjustified denial of documents may lead to an order of costs against the concerned party.

28. Any party seeking inspection of documents may do so in accordance with the Delhi High Court (Original Side) Rules, 2018.

29. List before the learned Joint Registrar (J) on 24.11.2025.

30. List before Court on 30.03.2026.

I.A. 24393/2025 (Under Order XXXIX Rules 1&2 CPC)

31. The present application has been filed by the Plaintiffs under Order This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 30/09/2025 at 00:10:20 XXXIX Rules 1 and 2 CPC seeking ex-parte ad-interim injunction.

32. Mr. Pravin Anand, learned counsel for the Plaintiffs sets up the Plaintiffs' case as under:

> 32.1. Plaintiff No.1, Azuga, Inc., is a California-based company specializing in GPS fleet tracking and management services, while Plaintiff No.2, Azuga Telematics Private Limited, is located in Bangalore, India, handling engineering and product management for Azuga's operations in India. In September 2021, both companies were acquired by Bridgestone Americas, Inc., a subsidiary of Bridgestone Corporation, as part of a strategy to enhance their tire-centric mobility solutions, focusing on improving fleet safety, performance, and sustainability.
>
> 32.2. The Plaintiffs offer comprehensive fleet solutions for various sectors, integrating hardware technology and data analytics to enhance fleet management, safety, and efficiency for over 13,000 commercial fleets. Their services include GPS vehicle tracking, driver monitoring, and route optimization, receiving multiple awards for innovation and excellence.

Additionally, their website, https://www.azuga.com, provides detailed information about their offerings, accessible to a global audience, including in India.

32.3. In India, the Plaintiff No.1 is the registered proprietor of the Trademark No. 6422638 for the wordmark 'AZUGA' and has been using the same at least since 2012, details of which is mentioned at paragraph 8 of the plaint. Plaintiff No.1 has also obtained registrations and filed applications for the trademarks 'AZUGA' in the United States, Germany, Mexico, and the European Union, with the earliest registration dating back to 23.10.2012.

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32.4. The Plaintiffs have demonstrated significant success, reflected in the global sales revenue of Plaintiff No.1's products and services, which, in 2024, was USD 83 million. The worldwide promotional expenses have also risen, with consistent investments ranging from USD 2 million to USD 3 million annually. In India, Plaintiff No.2's sales figures for the 'AZUGA' brand have shown a strong market presence, peaking at Rs. 124.53 crores in 2024.

32.5. Due to their extensive and continuous use of the mark 'AZUGA/ ', both in India and internationally, the Plaintiffs have established significant goodwill and reputation associated with the mark. This recognition stems from its distinctiveness, wide-ranging business activities, and extensive promotional efforts, making 'AZUGA' a name that the trade and public readily associate with the Plaintiffs' services. The mark is prominently featured on their website, highlighting its connection to the Bridgestone group of companies, which has further enhanced the Plaintiffs' credibility and market presence.

32.6. It is stated that the images and photographs displayed on their official website qualify as original artistic works under Section 2(c) of the Copyright Act, 1957 ('the Act'), and are protected by copyright as specified in Section 13(1)(a) of the Act. As the creators and first owners of these works, the Plaintiffs hold exclusive copyright rights. Consequently, any unauthorized use or reproduction of these images by third parties would constitute copyright infringement and warrants legal restraint.

33. It is case of the Plaintiffs that Azuga Telematics LLC (Defendant No.

1) is a GPS fleet tracking and management solutions provider based in This is a digitally signed order.

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Jamshedpur, Jharkhand, founded in 2022. Defendant No. 3, Mr. Senthil Kumar, is an ex-employee of plaintiff no. 2, where Defendant No. 3 worked in 2016. Defendant No. 4, BigRock Solutions Ltd., is the domain name registrar for Azuga Telematics LLC's website.

33.1. In 2023, the Plaintiffs discovered that Defendant No. 1's website, www.azugatelematicsllc.com, was using a trade-name identical to the Plaintiff No. 2's 'Azuga Telematics' and an infringing mark ' ' for its 'End-to-End Fleet Management Solution', which were found to be identical to the Plaintiffs' services. An internet search revealed that Defendant No. 2, Mr. Aman Kumar, was listed as the domain name registrant, though the registration details have since expired. Additionally, a third-party website indicates that Mr. Aman Kumar is the proprietor of the company.

33.2. On 31.01.2023, Plaintiff No. 1 sent a letter to Defendant No. 1 notifying them of the infringement concerning the use of the Plaintiffs' 'AZUGA' trademark. In response, Defendant No. 1

altered their logo but continued using the full 'AZUGA' mark, which did not resolve the Plaintiff's concerns. Plaintiff's counsel spoke with a representative from Defendant No. 1, Mr. Sagar, who promised to follow up but never did. In February 2023, Plaintiff followed up, hoping for an amicable resolution, but in December 2023, they were once again alerted by Mr. Mohanraj Kumar, who had received a job offer from Defendant No. 1, about the continued infringement.

33.3. The Plaintiffs also discovered a job listing on the third-party website www.naukri.com, where Defendant No. 1 had posted a job opening using This is a digitally signed order.

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33.4. Following continued instances of trademark infringement, Plaintiff No. 2 sent another letter to Defendant No. 1 on 12.01.2024, highlighting concerns over a fraudulent job offer made to Mr. Raj Kumar using a letterhead bearing the Plaintiff's 'AZUGA' trademark. The Defendant did not respond. Additionally, the Plaintiff discovered that the user interface (UI) and visual elements of Defendant No. 1's website closely resembled its own, prompting the Plaintiff's legal team to issue a copyright infringement notice to Facebook and domain registrar Big Rock (Defendant No. 4) on 17.05.2024. While the infringing URL was taken down, the Defendant continued to copy UI assets and use the Plaintiff's trademarks through its website and products.

33.5. Learned counsel for the Plaintiffs relied upon a comparison chart at paragraph 32 of the plaint which shows trademark and copyright infringement. He states that Defendants have strained every nerve to copy the UI assets of the Plaintiffs' website which amounts to an infringement of the Plaintiffs' copyright.

33.6. Further investigation by the Plaintiffs revealed that Defendant No. 1 was listed on a third-party website, GetDistributors.com, where Defendant No. 3, Mr. Senthil Kumar, was named in the contact details--confirming that former employees of Plaintiff No. 2, were actively involved in Defendant No. 1's operations.

33.7. Due to the Defendants' continued infringement and non- responsiveness, the Plaintiffs filed a Pre-Litigation Mediation Petition before This is a digitally signed order.

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33.8. Additionally, the Plaintiffs discovered negative online reviews about Defendant No. 1, including a LinkedIn post by a former employee alleging fraudulent practices, poor product quality, and misuse of the 'AZUGA' mark. Another review on AmbitionBox described the company as a 'copy'

of the original Azuga, citing poor work culture and HR practices. It is stated that these negative posts have the potential to tarnish the reputation and goodwill of the Plaintiffs, as the public may associate such fraudulent activities with the legitimate Azuga brand.

34. Learned counsel for the Plaintiff submits that the Defendants, with dishonest intent, have adopted and are using the trademark and trade name 'AZUGA TELEMATICS', which incorporates the Plaintiffs' registered trademark 'AZUGA' as a prominent feature. They have also copied the UI assets and product displays from the Plaintiffs' website, further evidencing their intention to falsely pass off their business as that of the Plaintiffs. Despite earlier takedowns of their website following complaints, the Defendants have continued to revive and operate it, showing a pattern of deceptive conduct. He states that the Defendants' unauthorized use of the 'AZUGA' trademark and trade name, along with similar services and content, constitutes clear infringement under Indian trademark law, including Section 29(5) of the Trade Marks Act, 1999, as well as copyright infringement. Negative reviews online further associate the Defendants' substandard offerings with the Plaintiffs, causing reputational damage and consumer confusion.

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35. This Court has heard the learned counsel for the parties and has perused the record.

36. The Plaintiffs are the registered proprietor of the mark 'AZUGA', both in India and internationally, has been using the mark 'AZUGA/ ', since 2022. Defendant no. 3 is an ex-employee of Plaintiff no. 2 and has connection with Defendant no.1. In these facts, the Defendants adoption of the name 'AZUGA' in the identical services as that of the Plaintiffs, prima facie appears mala fide to the Court.

37. The Plaintiff has also demonstrated that Defendants have copied pictures from Plaintiff's website on an 'as-is' basis using them on their own website.

38. Given the well-established recognition of the Plaintiffs' trademarks, Defendants use of a deceptively similar mark is likely to mislead the public into believing an association with the Plaintiffs, thereby causing confusion and diluting the distinctive character and identity of the Plaintiffs' AZUGA brand. The Defendants have unlawfully adopted and used the Plaintiffs' registered trademark 'AZUGA', as well as infringed the Plaintiffs' copyright in product photographs and images, all in connection with identical services.

39. In the view of the above, the Plaintiffs have made out a prima facie case for the grant of ad-interim injunction, balance of convenience lies in favour of the Plaintiffs and irreparable harm will be caused to the Plaintiffs, in case the restraint is not granted.

40. Accordingly, till the next date of hearing, following directions are issued:

a. Defendant Nos. 1 and 3, their partners, if any, officers, servants, This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 30/09/2025 at 00:10:20 agents, distributors, stockists and representatives are restrained from importing, manufacturing, warehousing, selling and/or offering for sale, advertising, directly or indirectly dealing, in any manner in any product/services including GPS Fleet Tracking / Management related product/services bearing marks either identical or deceptively similar to the Plaintiffs' registered trademark 'AZUGA' or any similar trademark ' / / /azuga Bridgeton Company specifically registration number 6422638 of the Plaintiff No.1 including the tradename 'AZUGA TELEMATICS'.

b. Defendant Nos. 1 and 3, their partners, if any, officers, servants, agents, distributors, stockists and representatives are restrained from using infringing the Plaintiffs' copyright by copying / reproducing images/photographs from the Plaintiffs' website. c. Defendant No.4 is directed to lock and suspend the operation of the domain name of the Defendant No.1 i.e., https://azugatelematicsllc.com/.

41. Issue notice to defendant nos. 1, 3 and 4 through all modes.

42. Reply be filed within four (4) weeks from receipt of notice. Rejoinder thereto, if any, be filed within four (4) weeks thereafter.

43. Defendant no. 4 shall file its compliance report within four (4) weeks. Defendant no. 4 will provide all BSI details of the registrant including the mode of payment through which the fees was paid.

44. Compliance of Order XXXIX Rule 3 of CPC be done within a period This is a digitally signed order.

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45. List before the learned Joint Registrar (J) on 24.11.2025.

46. List before Court on 30.03.2026.

MANMEET PRITAM SINGH ARORA, J SEPTEMBER 26, 2025/msh/AM This is a digitally signed order.

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